

This is the 1st affidavit
of Evan Gallan in this case
and was made on _____, 2026

No. _____
Kelowna Registry

IN THE SUPREME COURT OF BRITISH COLUMBIA

BETWEEN:

DANICA WOKOECK

CLAIMANT

AND:

TYSON WOKOECK

RESPONDENT

AFFIDAVIT

I, EVAN GALLAN, of _____ [address],
British Columbia, _____ [occupation], SWEAR (OR AFFIRM)
THAT:

1. I have personal knowledge of the facts and matters deposed to in this affidavit, except where stated to be made on information and belief, and where so stated, I verily believe the same to be true.
2. I make this affidavit in support of the Respondent, Tyson Wokoeck, and for no improper purpose.
3. I have known the Respondent since February 15, 2025, when I became a tenant of the Respondent and his father. I resided as their tenant until my fiancée and I moved out of the rental unit. Since moving out, I have remained in contact with the Respondent and have attended at his residence from time to time to assist him when needed.

4. Over approximately the last month, I have personally observed that the Respondent has been under significant stress and has been working diligently to prepare for the hearing in this proceeding concerning his daughters. Both while I was still a tenant and after my fiancée and I moved out, there were several days on which I attended to assist him with that preparation.
5. Early in the morning on Thursday, August 6, 2026, I attended at the Respondent's residence and began assisting him with going through, organizing, and printing the paperwork and exhibits in preparation for the hearing. There was a large volume of material to be processed and printed.
6. During the day on Thursday, August 6, 2026, the Respondent's computer began to slow down dramatically, which I believe was caused by the large volume of material being processed. The computer then crashed and stopped working, and the Respondent's printer stopped working completely. As a result, we had to change focus from printing and organizing the documents to trying to get the computer working again, so that we could access the documents and information stored on it.
7. On Friday, August 7, 2026, I returned to the Respondent's residence and spent the day helping him try to repair his computer. I was unable to stay any longer than approximately 2:00 p.m., because I had to return home to care for and prepare food for my fiancée. My fiancée is pregnant and was unwell, and she has been diagnosed with Postural Orthostatic Tachycardia Syndrome (P.O.T.S.), a chronic illness that limits her ability to do many things she could do before.
8. On the morning of Saturday, August 8, 2026, I returned to the Respondent's residence to try again to help him get the computer working. I have some knowledge of computers, but not extensive knowledge. My attempts to repair the computer were unsuccessful. As a result, the Respondent had to contact an emergency computer repair technician to attend and assist with the computer.
9. On [date — to be confirmed], I saw Jeff [last name], the Respondent's [relationship — to be confirmed]. I personally observed that he was visibly upset. I am informed by Jeff and believe that: he had been up most of the previous night assisting the Respondent with preparing his affidavit and had very little sleep; he fell asleep and did not wake to his alarm, and as a result missed picking up the Respondent's daughters at 10:00 a.m.; at approximately 11:15 a.m. he attended at the Claimant's

home, apologized, explained what had happened, and asked if he could still pick up the girls; and the Claimant declined his request. Jeff was very upset, as he knew how much this meant to the Respondent.

10. I have since learned that access did not take place on Sunday, [August 9, 2026 — confirm date], either. I have personally viewed photographs and videos of Jeff at the McDonald's [location — to be confirmed] that day, arriving approximately ten minutes early for the scheduled exchange, and I am informed by Jeff and believe that no one attended to meet him. I have also reviewed what I understood to be a court order providing that the exchanges were to occur on both days. I further reviewed an email from the Claimant stating that the Respondent was to have a FaceTime call with the children at 5:00 p.m., and I am informed by the Respondent and believe that the call did not take place. I do not understand how these missed visits serve the best interests of the children.
11. While assisting the Respondent with organizing the exhibits and other materials for the hearing, I reviewed certain materials prepared or filed on behalf of the Claimant. Based on my own personal knowledge and observations, I believe that some of the statements made on the Claimant's behalf in those materials are untrue, including the following:
 - (a) [Particulars of the specific statement, why the deponent has personal knowledge of the matter, and the true facts — to be completed];
 - (b) [Particulars of the specific statement, why the deponent has personal knowledge of the matter, and the true facts — to be completed];
 - (c) [Particulars of the specific statement, why the deponent has personal knowledge of the matter, and the true facts — to be completed];
12. My fiancée and I are expecting our first child in December 2026, and becoming a father is something I think about seriously. I have had numerous conversations with my fiancée about how the Respondent has been treated with respect to his children. I have personally observed the Respondent with his daughters on many occasions, including at the residence, and I have seen nothing but love and care from him toward them; his daughters appear happy and enjoy themselves when they are with him. Nothing I have personally observed is consistent with the suggestion that he should not see his children, and if a father like the Respondent could be treated this

way, it frankly frightens me as an expectant parent. It also concerns me deeply that, based on my own knowledge and observations, untrue statements appear to have been made in this proceeding without consequence.

13. As an expectant father myself, I have been glad to help the Respondent when he has needed it, and I make this affidavit to describe truthfully what I have personally seen and done as set out above.

SWORN (OR AFFIRMED) BEFORE ME)
at Kelowna, British Columbia,)
on _____, 2026.)

_____)
A Commissioner for taking Affidavits)
for British Columbia)

_____)
EVAN GALLAN